IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA
CRIMINAL DIVISION

COMMONWEALTH OF PENNSYLVANIA , *Plaintiff,* v. LASHADA LEE, *Defendant.*	**No.: CP-28-CR-594-2023** **Memorandum of Law in support of Defendant's Pro Se Pretrial Omnibus Motion for Relief**

Memorandum of Law in Support of Pro Se Omnibus Motion

Comes now your Defendant Lashada Lee and submits this Memorandum of Law in support of her Pro Se Motion to Dismiss Criminal Information and Habeas Corpus Nunc Pro Tunc.

STATEMENT OF FACTS:

1. Defendant Lashada Lee ("Lee") was joint legal custodial parent to her two daughters since their birth when, on March 17, 2020, the Circuit Court for Washington Co., Maryland (the "MDCC") entered an order (the "2020 EPO"), of which she had no notice or opportunity to be heard, suddenly naming her ex-husband John Rex ("Rex") physical and residential custodian.

2. The 2020 EPO ordered that Lee's children be removed from Pennsylvania (where they lived) and taken to some undisclosed address in Florida, where Rex was ordered to register the older child in the local public school (also undisclosed).

3. Lee stands accused of two felony charges (carrying the possible sentence of 14 years in prison) for not having facilitated this order

in Pennsylvania on or after that date. Instead, she left Pennsylvania that day with her children and continued to care for them as a good parent, without abusing or neglecting them, or endangering them, as she always had done.

4. At the time Lee was arrested, she was without funds and was assigned counsel, Mr. Enoch Jones ("Jones") of the Franklin County Public Defender's Office. Jones did not inform Lee that any pretrial motions could be filed in her behalf and he did not file any. Lee only learned about this remedy in mid-September of this year when she had to resort to doing her own research because she was unrepresented and the pretrial hearing loomed. Jones apparently ignored Lee's right to challenge the validity of the 2020 EPO and instead attempted to coerce a plea that the Prosecutor was offering.

5. Shortly after his representation of Lee, Jones left the PD and joined the DA's office. Lee's two subsequent attorneys also failed to file any dispositive pretrial motions although they would have been in order.

6. The PD's file in this matter has never been turned over to Lee; it is possible that it was not turned over to her subsequent private attorneys either; so Lee is unaware of its contents.

I. The Law Supports Allowing an Exception to Rule 579

Under Pa..Crim.P. 579(A), pretrial motions should be filed within 30 days of arraignment unless the opportunity to do so did not then exist, the defendant was unaware of the grounds, or the court extends the time for "good cause shown." There is not much appellate caselaw

available providing guidance as to whether or not, and under what circumstances a Judge should allow a late filing because it is, reasonably and rationally, a matter of trial court discretion. In this case, a valid excuse exists for allowing the instant pro se motion to be heard and Lee respectfully asserts that allowing it will not only not waste the Court's time, but will probably save judicial time and relieve the Commonwealth of expense and administrative burden (either of trial and/or of response to complex and lengthy appellate proceedings).

Pennsylvania courts explicitly recognize that an exception to the 30-day rule is required when strict enforcement would result in a severe miscarriage of justice, particularly when caused by structural failures or ineffective assistance of prior counsel. See *Commonwealth v. Holmes*, 79 A.3d 562 (Pa. 2013) (holding that trial courts retain the inherent discretion to entertain claims of counsel's deficient performance at the pretrial stage in extraordinary circumstances where the claim is apparent from the record and the interests of justice require immediate consideration). Furthermore, when a pretrial motion is submitted late but *prior* to the scheduling of a definitive trial date, the prosecution suffers no structural impairment. See *Commonwealth v. Long*, 753 A.2d 1244 (Pa. Super. 2000) (finding no prejudice to the Commonwealth where an untimely motion is raised before the trial schedule is disrupted).

Lee is now proceeding pro se while on the verge of hiring yet another attorney to represent her should this motion fail. She raised this critical challenge immediately upon discovering prior counsel's deficiencies. Under *Commonwealth v. Cooke*, 492 A.2d 63 (Pa. Super. 1985), a defendant should be granted an extension to file an omnibus motion where they act promptly to raise meritorious claims following a change of counsel. Not only does the posture of this case

at this time show that this Motion is worthy of consideration, but at the September 3, 2026 hearing the DA said he would need two days for the prosecution; Defendant will require at least two more days to present her evidence of "belief that [she] acted to protect [her] children from danger of harm to their welfare" (first affirmative defense listed in the statute) and possibly another half day to present at least one expert witness as well (to let a jury understand the complexities of this case). So approximately a full week of trial must be expected, at great expense to both the Commonwealth and the defendant. Because no trial date has yet been set, however, and a pretrial hearing is scheduled for October 29, 2026, the Commonwealth faces zero prejudice, no witness disruptions, and no calendar delays. Forcing a facially unconstitutional and legally questionable indictment to go to trial would constitute a serious waste of judicial resources and would be unjust.

II. The Law Supports Granting the Motion on its Merits.

Pennsylvania courts have inherent discretion to hear untimely motions to preserve constitutional protections and prevent systemic waste. Both constitutional protection (being tried for a crime of disobedience to a foreign court order that denied due process and was ***void ab initio***) and systemic waste (holding a trial in which the prosecutor cannot prove his case because at least one, and possibly both of the affirmative defenses set forth in the statute are present and one, §2904(b)(1), is incontrovertible) support this pro se motion. If the prosecutor managed to get a conviction in spite of all this, it would be subject to being overturned on appeal after much expense and trauma. *Commonwealth v. H.D.*, 248 A.3d 1243 (Pa. 2021). See also *Commonwealth v. Harlan* (208 A.3d 497). In *Harlan*, the trial court found a valid excuse for the severe delay based on the procedural chaos surrounding the defendant's representation. *Commonwealth v.*

Harlan, 208 A.3d 497, 499 (Pa. Super. 2019). Among "good causes" listed in the case law, a prior attorney's failure to investigate (Per Se Ineffectiveness) is all too common. In this case, Jones, the PD, failed to file the necessary motion to dismiss the indictment, although it was transparently, indeed glaringly obvious that the indictment was structurally defective at its core. The law also recognizes, as a practical matter, that there is such a thing as an attorney withholding the filing of a dispositive pretrial motion in order to coerce a plea bargain. Because Lee has no actual evidence of specific communications between and/or among defense and prosecution personnel, however, she makes no allegations about that suggestion at this time. Lee simply wants to point out that when counsel (or a series of counsel) abandons a critical constitutional claim, forcing the defendant to act pro se out of self-preservation, the Court may consider the merits of a pro se motion filed outside the deadline, in the interests of justice. Pennsylvania appellate courts have repeatedly held that when a defendant's right to effective, conflict-free counsel collapses, the 30-day deadline should give way to prevent a serious miscarriage of justice.

III. The Law shows that the MD Court was not "a court of competent jurisdiction"

Interstate custody disputes often involve jurisdictional struggles and criss-crossing litigations that present issues of subject matter jurisdiction. So over the last six decades, a federal law (42 USC §1738A, the "PKPA"), a Uniform Code (the "UCCJEA") and state laws such as MD FL §9.5-101 et seq. and Pa. Title 23, Chapter 54 have been passed to govern how state courts make and enforce valid child custody orders. For any state court (the "decree state") to enter a custody order that can be enforced by another state (the "forum state"), it must comply with its own applicable law and also comply with the superseding

federal law. Only then can the decree state be considered a "court of competent jurisdiction

The 2020 EPO was not an order entered by a court of competent jurisdiction on March 17, 2020. The Circuit Court of Washington County, MD (the "MDCC") had entered a valid custody order on October 7, 2019 giving Lee joint legal custody with primary residential and physical custody of her children. And the Maryland court did have continuing jurisdiction over custody after that, so long as the children or any contestant for custody "continue[d] to reside in [Maryland]" at the time it sought to exercise its continuing jurisdiction. On March 17, 2020, however, no child or contestant for custody of the Rex/Lee children did continue to reside in Maryland. Rex had left Maryland in 2014; Lee had left Maryland in July, 2019. Had the 2020 EPO been made properly, following the applicable law and the Constitution, notice would have been given to Lee and she would have had an opportunity to challenge the motion under MD FL 9.5-201. Then a court of competent jurisdiction could have taken over the custody case and ruled in compliance with the jurisdictional statutes. But there was no notice; the 2020 EPO was signed mere hours after the motion was filed, and the Order was remarkably thorough in depriving the mother of any possibility to respond. Had she been able to challenge the essential subject matter jurisdiction, it is likely that she could have also challenged the broad and unwarranted assumptions that underlay the merits but she was deprived of the opportunity to do any of that because the MDCC went from the filing of the motion to the entry of the order in a single morning.[1] The MDCC was no longer a court of compe-

[1]This leads a person to believe that there was some sort of inappropriate conduct connected with the making of this order. An "emergency motion" that is granted in toto without an evidentiary hearing of even one hour's duration smacks of impermissible ex parte communication, undue influence or other judicial and/or extrajudicial malfeasance.

tent jurisdiction to decide custody of the Rex/Lee children because, for seven or eight months by March 17, 2020, the necessary prerequisites for the exercise of such jurisdiction had lapsed: no child or contestant for custody continued to reside in Maryland. But no hearing was held on jurisdiction under the UCCJEA just as no hearing was held on the veracity of Mirabelli's Report or other conclusory allegations stuffed into the BIA's motion because the nicety of giving a mother an opportunity to defend her parental rights was disposed of. The MDCC was not a court of competent jurisdiction, if any jurisdiction at all, on that date.

IV. The Law pertaining to an order that is *void ab initio*

One morning during the COVID lockdown, namely on March 17, 2020, a family court in the State of Maryland entered an order giving a Florida man physical custody of two children living in Pennsylvania whose mother had physical and residential custody of them by law and had been their residential and legal (and psychological) custodial parent continuously since their birth. That order, the 2020 EPO, was ***void ab initio***. That means it was a legal nullity. It cannot be enforced in any court, even the court that entered it. Such an order can be directly or collaterally challenged in any forum in which its enforcement is sought, regardless of the passage of time or the procedural issues pertaining. ***Jones v. Flowers***, 547 US 220 (2006). This Omnibus Motion is a collateral attack on the validity of the 2020 EPO, which the Commonwealth has been enforcing against Defendant since it was hastily and improperly entered more than six years ago. It is extremely important to prevent the Commonwealth from criminally prosecuting a person with the threat of 14 years in prison simply because she did not and could not respond to or comply with such an order; this Court should therefore carefully investigate the facts and arguments

presented and allow the Defendant to prove that the criminal information being used against her is without legal foundation or justification. In short, this prosecution is not permitted in Pennsylvania because it is based only on a ***void ab initio*** order from Maryland, and it is clear beyond cavil that Pennsylvania courts cannot enforce orders that are made without due process. *Glen-Gery Corp. v. Zoning Hearing Board of Dover Township*, 589 Pa. 135, 907 A.2d 1033 (Pa. 2006).

V: The law showing Lee was not a person "without the privilege"

Even if, ***arguendo***, the 2020 EPO had been entered properly and on notice in Maryland, as a matter of law, Lee did not commit the crime described in the statute. 18 Pa.C.S. §2904(a) requires the Commonwealth to prove that she took the children "when [she had] no privilege to do so." But in Pennsylvania, parents have an inherent privilege to custody until or unless that privilege/right is removed from them by a legal procedure that comports with due process. Under Pennsylvania law, a biological parent with joint legal and primary physical custody possesses an absolute legal "privilege" to be with their child. Since no valid order had removed this legal right/privilege from Lee on March 17, 2020, she retained it, and was not a "person without the privilege" on that date. ***Hiller v. Fausey***, 904 A.2d 875 (Pa. 2006)

VI: The Pennsylvania Law Specifically Prevents this Prosecution

The 2020 EPO may not be enforced in Pennsylvania criminal or civil courts because Pennsylvania law specifically excludes it from enforcement in the Commonwealth. The UCCJEA as adopted in Pennsylvania, 23 Pa. C.S. § 5425 (b), states:

> Lack of notice or opportunity to be heard. – This chapter does not govern the enforceability of a child custody determination made without notice or any opportunity to be heard.

The law could not be more clear: the Commonwealth cannot legally prosecute Lee for functioning as a protective mother to her children. Procedural due process clauses under both the United States Constitution and the Pennsylvania Constitution strictly require notice and a meaningful opportunity to be heard before a fundamental liberty interest — such as a mother's primary custody of her child — can be stripped away during a few hours in another state. Lee's Constitutional, legal, statutory and human rights did not dissolve on March 17, 2020 when a judge in Hagerstown signed an order granting a motion of which Lee had no knowledge and no opportunity to respond.

Furthermore, 18 Pa.C.S.§2904 requires a criminal mental state: the defendant must act *knowingly* or *recklessly* to defy a lawful custody order. Because the ex parte order was secured without notice or opportunity to be heard, Lee had no chance to appear, oppose it, challenge the sufficiency or legality of it, proffer evidence, challenge the jurisdiction of the MDCC, challenge the sufficiency of evidence, if any, against her, etc. It is a legal impossibility for her to have "knowingly" violated an order she was never given opportunity to challenge and to this day does not comprehend. And as to the notion that a psychologist can write a report calling the mother "unstable," not be subjected to any questioning about how she formed that opinion (or how it may affect the child's best interests, if at all), accuse the mother of making "false allegations of sexual abuse" without any court having heard, decided or declared those allegations to be "false," and obtain an immediate order stripping a mother of custody she gained in a lawful, litigated proceeding, should shock the conscience of anyone with

a basic understanding of childhood development or "good enough parenting."

Because Defendant operated under her valid, inherent custodial privilege, and because the Commonwealth cannot produce a constitutionally valid, legally sufficient order made by a court of competent jurisdiction to the contrary, the Commonwealth cannot establish a prima facie case for the elements of §2904, and the prosecution is left without any justification for this prosecution.

Conclusion

Defendant has not committed any crime in the Commonwealth; she did not violate any valid, enforceable order of a court of competent jurisdiction depriving her of the privilege to move with her children anywhere at any time, much less on March 17, 2020. Her pro se motion is justifiable and should be heard although it is not timely under Rule 579. Her motion is meritorious and necessary to protect her constitutional rights. Pennsylvania law supports the granting of this motion.

Respectfully Submitted this ____ day of October, 2026.

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